

25STCV25908 25STCV25908

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-08-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C516%2C08%2F27%2F2026

Source SHA-256: 4a239e6593ee29b3bea8d836de7f328140390c26fbf99de50e0d794cb2cee859

Case Number: 25STCV25908 Hearing Date: August 27, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 27, 2026

Case Name: Haal Interiors Inc. v.

General Motors LLC

Case

No.: 25STCV25908

Matter: Plaintiff Haal Interiors's Motions to Compel

Defendant General Motors LLC to respond to Form and Special Interrogatories,
and Request for Production of Documents, and Deem Requests for Admissions
Admitted

Moving

Party: Plaintiff Haal

Interiors Inc.

Responding Party: Defendant General Motors LLC

Tentative Ruling: Plaintiff

Haal Interiors's Motions to Compel Defendant General Motors LLC
to respond to Form and Special Interrogatories, and Request for Production
of Documents are granted.

Plaintiff

Haal Interiors's motion to Deem Requests for Admissions Admitted against Defendant is denied.

Plaintiff

Haal Interiors Inc ("Plaintiff") filed this action against Defendant General Motors LLC ("Defendant") and Does 1 through 100. The Complaint alleges five causes of action for: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); (4) breach of express written warranty; and (5) breach of implied warranty of merchantability.

Plaintiff

moves to compel Defendant General Motors LLC to respond to its Form and Special Interrogatories, and Request for Production of Documents. Plaintiff also moves to deem Requests for Admissions admitted. Defendant opposes.

Analysis

Propounded Discovery

On June 19, 2026, Plaintiff

propounded discovery on Defendant, which included Plaintiff's Request for Production of Documents (Set One), Special Interrogatories (Set One), Form Interrogatories (Set One), and Request for Admissions (Set One). (Meagle Decl., ¶ 3, Ex. A.) Plaintiff contends that responses were due on July 20, 2026. Plaintiffs' moving papers contend that Defendant has not served responses. (Meagle Decl., ¶ 5.)

In opposition, Defendant contends that it was not properly served, but has served responses. The Court is not persuaded by Defendant's argument that it was not properly served because the Proof of Service on the propounded discovery shows that the discovery was served to the two following emails "" and "." The Court's record reflects that Brian C. Vanderhoof is listed as counsel for this case. Nor are the parties required to meet and confer before the filing of the present motion.

Plaintiff argues that the

opposition should not be considered because it was not properly served.

However, as with Defendant, the emails served are those in the Court's record.

Thus, the opposition was served to “.” The responsibility is on the parties to update the Court of any changes to their email addresses so that the Court can verify whether the parties are properly served. (Cal. Rules of Court, rule 2.251(g).) The Court will consider Defendant's opposition.

Nonetheless, Defendant concedes that it served responses on August 3, 2026. (Swett Decl., ¶ 7.) Defendant's responses were untimely; thus, it has waived its objections. The Court may relieve a party's waiver of objections on motion if the waiving party has served responses in substantial compliance and the party's failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a); 2031.300, subd. (a).)

As an initial matter, Defendant has not filed a motion for relief from waiver, nor has it asserted that its failure to oppose timely was due to the result of mistake, inadvertence, or excusable neglect. Thus, Defendant has waived its objections.

Therefore, the motions to compel responses from Defendant without objections to Plaintiff's Request for Production of Documents (Set One), Special Interrogatories (Set One), and Form Interrogatories (Set One) are granted.

Deem Admitted

Plaintiff moves for the Court to deem admitted the Requests for Admissions (Set One) against Defendant pursuant to Code of Civil Procedure section 2033.280.

When a party fails to serve timely responses to requests for admissions, “[t]he court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: (1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230. (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2033.280, subd. (a)(1)-(2).)

The parties assert identical arguments as with the other propounded discovery. The Court reintegrates their

arguments.

However, unlike motions to compel, the Code of Civil Procedure includes an additional provision that bars the Court from deeming Requests for Admissions admitted when they have been responded in substantial compliance. (Code Civ. Proc., § 2033.280, subd. (c).) Defendant's responses are in substantial compliance.

Thus, the Court denies Plaintiff's motion to deem the Requests for Admissions (Set One) admitted.

Sanctions

Plaintiff requests that the Court to impose monetary sanctions on the amount of \$2,685.00 against Defendant and their attorney of record for the reasonable costs and fees incurred as a result of having to bring each motion. (Meagle Decl., ¶¶ 6-8.) The Court finds the request is unreasonable and excessive. The Court will grant attorney fees and costs in the total amount of \$2,340 for all of the motions to compel.

Conclusion

Plaintiff

Haal Interiors's Motion to Compel Defendant General Motors LLC to respond to Form and Special Interrogatories, and Request for Production of Documents are granted. Defendant is to serve Code-Complaint responses without objections by September 28, 2026.

Plaintiff

Haal Interiors's motion to deem Requests for Admissions admitted against Defendant is denied.

Sanctions are granted against Defendant and their counsel of record in the amount of \$2340. Sanctions are to be paid on or before September 28, 2026.